

District-Sylhet.**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)****Present:****Mr. Justice Md. Toufiq Inam****Civil Revision No. 4302 of 2012.**

Begum Khaja Eliza Yeasmin and another.

----Defendant Nos. 2, 4 & 5/Respondents-Petitioners.

-Versus-

Howa Begum and others.

---- Plaintiffs-Appellants-Opposite Parties.

Mr. M. F. Ahmed, Advocates

----For the Defendant Nos. 2, 4 & 5/Respondents-
Petitioners.

Mr. Ali Ahsan Mullah, Advocate

----For the Plaintiffs-Appellants-Opposite Parties.

Heard On: 27.10.2025, 28.10.2025.

And

Date of Judgment: 30th Day of September 2025.**Md. Toufiq Inam, J.**

This Rule was issued calling upon the opposite parties to show cause as to why the judgment and decree dated 25.09.2012 (decree signed on 01.10.2012) passed by the learned Joint District Judge, 3rd Court, Sylhet, in Title Appeal No. 144 of 2008, reversing the judgment and decree dated 27.10.2008 (decree signed on 03.11.2008) passed by the learned Senior Assistant Judge, Sadar, Sylhet, in Title Suit No. 166 of 2000 (renumbered as Title Suit No. 49 of 2004), should not be set

aside or such other order passed as to this Court may seem fit and proper.

The facts, in brief, are that the plaintiffs instituted Title Suit No. 166 of 2000 on 10.07.2000 for cancellation of registered sale deed No. 14477 dated 27.10.1992 alleging that the said deed was forged and fabricated, executed in the name of one Sajina Bibi who had allegedly died prior to its execution. The suit land described in Schedule “Ka” of the plaint pertains to S.A. Khatian Nos. 532 and 534 of Mouza—Hazipur, P.S.—Sadar, District—Sylhet.

According to the plaintiffs, Sajina Bibi died on 26.06.1991 leaving them as her heirs. After her death, they continued in possession of the land. However, in 2000, they allegedly came to know that the defendants were claiming title on the basis of a sale deed purportedly executed by Sajina Bibi. Upon obtaining a certified copy of the deed on 12.07.2000, they found that it was executed in 1992—after her death—and thus filed the instant suit seeking its cancellation.

The contesting defendants denied all allegations and asserted that the suit was not maintainable, barred by limitation, and bad for defect of parties. They contended that Sajina Bibi was alive on 27.10.1992 and voluntarily executed the deed for valuable consideration in their

favour. They further claimed to have taken possession immediately upon purchase and have remained in possession since, by constructing homesteads and a pond. They asserted that Sajina Bibi died later, on 02.10.1993.

The plaintiffs examined three witnesses (PW-1 to PW-3) and produced three exhibits including the impugned deed and an alleged death certificate (Exhibit-3). PW-3, the Imam who supposedly issued the certificate, denied having issued or signed such document. The plaintiffs failed to produce any attesting witness of the deed or to have the thumb impression examined by an expert.

The defendants examined four witnesses including one attesting witness (DW-2), who deposed that he was present at the execution and saw Sajina Bibi affix her thumb impression on the deed. DW-1 and DW-2 also stated that the defendants took possession of the land after purchase and are still in possession.

Upon a careful evaluation of the evidence, the learned trial court found that the plaintiffs failed to prove the alleged death of Sajina Bibi prior to execution of the deed. It further held that Exhibit-3 was a concocted and unproved document since its alleged author disowned it. The court observed that under Section 60 of the Registration Act,

1908, a registered deed carries a statutory presumption of genuineness and due execution, which the plaintiffs utterly failed to rebut. It also found that the defendants' possession corroborated the genuineness of the transaction and accordingly dismissed the suit on 27.10.2008.

On appeal, the learned Joint District Judge, 3rd Court, Sylhet, in Title Appeal No. 144 of 2008, reversed the judgment by relying mainly on Exhibit-3 and concluded that Sajina Bibi had died before execution, rendering the deed void ab initio. It also appears that certain additional documents were taken into consideration without following the mandatory procedure of Order 41 Rule 27 CPC and without giving the defendants an opportunity to rebut or cross-examine.

Being aggrieved, the defendants as petitioners moved this Court and obtained the present Rule.

Mr. M. F. Ahmed, learned Advocate for the petitioners, submits that the appellate court's judgment is a clear case of misreading of evidence and non-consideration of material facts. He submits that Exhibit-3 was rightly rejected by the trial court as its alleged author denied authorship, rendering it inadmissible under Section 67 of the Evidence Act, 1872. The appellate court, he contends, acted beyond jurisdiction in admitting additional documents without satisfying the preconditions of Order 41 Rule 27 CPC.

He further submits that DW-1 and DW-2, including an attesting witness, proved the due execution and registration of the deed, and that under Section 60 of the Registration Act a registered deed enjoys a presumption of genuineness unless rebutted by cogent evidence, which was lacking here. He lastly submits that the suit, filed after eight years, is barred by limitation and not maintainable as a bare suit for cancellation under Section 39 of the Specific Relief Act, 1877 without a prayer for declaration and possession.

Per contra, Mr. Ali Ahsan Mullah, learned Advocate for the opposite parties, supports the appellate decree and submits that the appellate court rightly found that Sajina Bibi had died before 27.10.1992, and therefore the deed was void. He argues that the presumption under Section 60 of the Registration Act is rebuttable and that the appellate court exercised its power to admit additional evidence for doing complete justice.

Upon hearing the parties and examining the records, this Court finds that revisional jurisdiction under Section 115 of the Code of Civil Procedure is limited to correcting jurisdictional errors and material irregularities resulting in miscarriage of justice. It does not permit substitution of factual findings unless those findings are perverse or based on no evidence.

It is well-settled that a registered document carries a statutory presumption of genuineness under Section 60 of the Registration Act, 1908. It was consistently held that unless the execution of a registered document is specifically disproved by credible evidence, courts must presume due execution and validity. The burden under Sections 101–103 of the Evidence Act squarely lies upon the person who alleges forgery or posthumous execution. In the instant case, the plaintiffs utterly failed to discharge this burden.

The so-called death certificate (Exhibit–3) was disowned by its alleged author, PW-3, and therefore carries no evidentiary value under Sections 67 and 68 of the Evidence Act. No other reliable evidence was produced to establish the date of death. In contrast, DW-1 and DW-2, including an attesting witness, testified clearly that Sajina Bibi was alive at the time of execution and voluntarily affixed her thumb impression on the deed. Their testimony, coupled with undisputed possession by the defendants, strongly supports the genuineness of the transaction.

The appellate court, while reversing the well-reasoned judgment of the trial court, however, relied solely on an alleged death certificate purportedly issued by the Chairman, overlooking that the said document was neither exhibited nor marked as an exhibit, and the

issuer Chairman was never examined. By disregarding the credible testimony of the defence witnesses and basing its conclusion on no legal evidence, the appellate court's finding is manifestly perverse and unsustainable in law, committed a manifest error by relying on an unproved document and admitting additional evidence in violation of Order 41 Rule 27 CPC. It is now firmly settled that additional evidence at the appellate stage can be admitted only upon satisfaction of the conditions enumerated therein and after granting the opposite party an opportunity of rebuttal; failure to do so renders the judgment vitiated by material irregularity.

The suit also suffers from the bar of limitation. The deed was executed in 1992, whereas the suit was filed in 2000. Under Article 91 of the Limitation Act, 1908, a suit for cancellation of a document on the ground of fraud must be filed within three years from the date of discovery of the fraud. PW-1 admitted that the plaintiffs were aware of the deed much earlier and could not satisfactorily explain the long delay. Hence, the suit is hopelessly time-barred.

Further, as the plaintiffs were admittedly out of possession, their bare suit for cancellation under Section 39 of the Specific Relief Act, 1877, without a prayer for declaration of title or recovery of possession, is

not maintainable. Where the plaintiff is out of possession, a simple suit for cancellation cannot be entertained.

It is a settled proposition that the sanctity of a registered deed cannot be lightly disturbed on mere suspicion or hearsay evidence. The courts must insist upon clear, cogent, and convincing proof of fraud or forgery. The appellate court's findings being based on inadmissible and unproved evidence, its decree is clearly perverse and occasioned a failure of justice.

On an overall assessment, this Court finds that the learned trial court made a lawful and well-reasoned appreciation of the evidence, whereas the appellate court exceeded its jurisdiction, misread the evidence, and relied upon an unproved document. Its judgment, therefore, cannot stand in the eye of law.

Accordingly, **the Rule is made absolute.**

The judgment and decree dated 25.09.2012 (decree signed on 01.10.2012) passed by the learned Joint District Judge, 3rd Court, Sylhet in Title Appeal No. 144 of 2008 is hereby set aside.

The judgment and decree dated 27.10.2008 (decree signed on 03.11.2008) passed by the learned Senior Assistant Judge, Sadar,

Sylhet, in Title Suit No. 166 of 2000 (renumbered as Title Suit No. 49 of 2004) is restored. Consequently, the suit stands dismissed.

The interim order of stay stands vacated.

There shall be no order as to costs.

Let a copy of this judgment be transmitted to the court below along with the Lower Court Records at once.

(Justice Md. Toufiq Inam)

Ashraf/ABO.